

Our ref: Project Apollo Data Centre Macquarie Park (SSD-74069708)

Mr Guy Smith
Head of Planning
Goodman Property Services (Aust) Pty Ltd
1-11 Hayes Road
Rosebery NSW 2018

2 August 2024

Subject: Planning Secretary's Environmental Assessment Requirements – Industry Specific

Dear Mr Smith

Please find attached a copy of the Planning Secretary's environmental assessment requirements (SEARs) for the preparation of an Environmental Impact Statement (EIS) to accompany the State significant development application (DA) for the Project Apollo Data Centre Macquarie Park (SSD-74069708).

Based on the information provided in your application, industry-specific SEARs have been issued for your project.

Please contact the Department of Planning, Housing and Infrastructure (the Department) as soon as possible if your project changes. If the changes are significant, a scoping report may be required and the SEARs may need to be re-issued. The Department may also need to consult with public authorities in accordance with Part 8 of the Environmental Planning and Assessment Regulation 2021 (EP&A Regulation).

If required, the Planning Secretary may modify your SEARs to ensure the environmental assessment of the project covers all relevant matters and is consistent with contemporary assessment practice.

Your SEARs will expire two years from the date of issue (or the date they were last modified) unless the Planning Secretary has granted an extension. If you would like to seek an extension, you should contact the Department at least three months prior to the expiry date.

If your application is not submitted within two years (or by the agreed extension date), you will need to make a new application for SEARs to progress your project.

Additional assessment requirements

The Department has identified assessment requirements additional to those attached. These requirements, in addition to the industry-specific SEARs, are provided below and should be taken to be the collective SEARs for the project.

- Statutory and Strategic - The EIS must assess the consistency of the development with the following:
 - Macquarie Park Innovation Precinct Place Strategy and the Macquarie Park Innovation Precinct Master Plan as per section 35 of the Environmental Planning and Assessment Regulation 2021
 - Macquarie Park Innovation Precinct Stage 1 and Stage 2 rezoning proposals.
- Hazards and risk – The EIS must demonstrate the relevant aspects of the *FM Global Property Loss Prevention Data Sheet 5-32 – Data Centres and Related Facilities* have been considered and could be implemented as part of the development. It must also demonstrate the development would comply with the relevant aspects of the following standards:
 - AS/NZS 4681 – Storage and handling of Class 9 (miscellaneous) dangerous goods and articles
 - AS IEC 62619 – Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications
 - AS 1940 – Storage and handling of flammable and combustible liquids.
- Design options analysis – The EIS must:
 - identify design options considered during an iterative process and demonstrate the proposed development has been optimised to provide an integrated built-form design and to minimise amenity impacts by having regard to the relevant evaluation criteria in the Government Architect's Better Placed design policy.
- Plant and Equipment selection – The EIS must:
 - include a comprehensive options analysis of all commercially available cooling and back-up power systems
 - provide a detailed overview of the proposed data hall cooling system including number and details of associated plant and equipment, and the energy and water demands of the proposed data hall cooling system
 - provide demonstration the development can achieve a NABERS 3 stars energy rating or higher including the Power Usage Effectiveness (PUE) calculations of plant and equipment required for the operation of a data centre.
- Operational noise – The EIS must include an operational noise assessment, which:
 - provide details of noise monitoring survey, background noise levels and amenity noise levels at the potentially most-affected residential receptors (i.e. not necessarily the nearest residential receptor)

- include details of manufacturer specifications for plant and equipment and noise source inventory (demonstrating worst-case modelling of plant and equipment, including testing of any back-up power system and critical power failure scenario)
- evaluate data centre operational noise for any potential annoying noise characteristics such as tonality and dominant low-frequency content.
- Consultation – The EIS must be informed by direct consultation with City of Ryde regarding the design of the development and potential visual impacts.

Preparing your EIS

Your environmental impact statement (EIS) must be prepared having regard to the Department's *State Significant Development Guidelines* including the *Preparing an Environmental Impact Statement Guideline*. All relevant guides for State significant projects that are referenced in the SEARs are available [here](#).

During the preparation of your EIS, you are required to consult with various parties, including the Department and any relevant agencies, in accordance with the *Undertaking Engagement Guidelines for State Significant Projects*. For more information, please visit the [Prepare EIS page](#) on the NSW planning portal. Agency contact details can be found [here](#).

You will need a Registered Environmental Assessment Practitioner (REAP) to declare that your EIS meets certain standards in relation to its completeness, accuracy, quality and clarity before it is submitted to the Department, as per Division 5 of Part 8 of the EP&A Regulation. A pro forma declaration can be found in [Appendix B of the *Preparing an Environmental Impact Statement Guideline*](#). For more information on the REAP Scheme, please see the REAP Guidelines and the frequently asked questions on the Department's [website](#).

Biodiversity Development Assessment Report

Any development application that is required to be submitted with a Biodiversity Development Assessment Report must use the template available at: <https://www.environment.nsw.gov.au/research-and-publications/publications-search/guidance-for-the-biodiversity-development-assessment-report-template>.

Lodging your development application (DA)

Once you submit your DA and accompanying EIS, we will check it for completeness to confirm it addresses the requirements in Part 8 of the EP&A Regulation.

To minimise delays, please contact the Department at least two weeks before you submit your DA and EIS to confirm the DA fee payment arrangements.

Please note that your DA is not taken to be lodged until the DA fee has been paid.

Information needed to determine the DA fee

Your application will need to be accompanied by an Estimated Development Cost (EDC) Report supporting the estimated development cost for your project. You must ensure that the information in the report is consistent with the information provided in your DA form and the Department's EDC requirements. Once you submit your EDC Report, we will check it for completeness against the requirements of the EP&A Regulation and the relevant Planning Circular.

If your project involves marinas, extractive industries or any subdivision of land, you must also ensure that your report includes a breakdown of estimated costs for any other component of your project.

Public exhibition requirements

When you contact us regarding the applicable DA fee arrangements, we will also confirm the consultation and public exhibition arrangements.

Community Consultation

The Department wishes to emphasise the importance of effective and genuine community consultation. A comprehensive open and transparent community consultation engagement process must be undertaken during the preparation of the EIS. This process must ensure that the community is provided with a good understanding of what is proposed (including a description of any potential impacts) and they are actively engaged in issues of concern to them. Please note, your EIS must include clear evidence that this consultation has been undertaken and justification for the proposed consultation method(s) used.

Matters of National Environmental Significance

Any development likely to have a significant impact on matters of National Environmental Significance will require approval under the Commonwealth *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act). This approval is in addition to approvals required under NSW legislation.

It is your responsibility to contact the Australian Government Department of Climate Change, Energy, the Environment and Water to determine if you need approval under the EPBC Act (<https://www.dcceew.gov.au/> or (02) 6274 1111).

Department of Planning, Housing and Infrastructure



If you have any questions, please contact Jeffrey Peng on (02) 9995 6685 or via email at jeffrey.peng@planning.nsw.gov.au.

Yours sincerely,

A handwritten signature in black ink, appearing to read "J. Bakopanos".

Joanna Bakopanos
A/ Director, Industry Assessments
Planning & Assessment
as delegate for the Planning Secretary